denial of civil and human rights.[41] The regime has shown itself to be unwilling to properly investigate ethnic attacks against the Rohingyas,[42] especially in instances where the military was involved. This in itself removes one of the barriers for the case of genocide to be heard at the International Criminal Court,[43] as the host nation can be seen as incapable of taking action within its own jurisdiction.

At the moment, the situation in Rakhine can be described as almost a textbook case of pre-genocide.[44] All that is missing is a final trigger which could come from conflict, economic crisis, natural disaster or political events. This is likely to start a massacre of those Rohingyas still living in urban areas (such as around Sittwe) and villages and then those held in the various prison camps dotted around the state.

Summary

Organising a genocide is not easy. Even people who are prejudiced against other ethnic or religious groups are often not prepared to engage in violence or to sanction mass murder. Thus regimes or other actors who would pursue such a policy need to move relatively slowly, building a consensus for their plans by drawing on existing narratives and testing the limits of acceptable behaviour. This involves both domestic opinion and the likely reaction of other governments. Even once hatred and social exclusion has become acceptable, there is a large step left to take towards genocide. For that, there is a need to fuse the capacity of the state with the indifference or active support of the population, and add silence or complicity from the international community. In the end, every genocide (as opposed to instances of ethnic conflict) has happened due to state policy, and only when that state believes it can get away with it in the face of domestic and international opinion.